

25STCV22772 25STCV22772

County: los-angeles

Division: Civil Law and Motion

Department: 511

Hearing date: 2026-08-06

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C511%2C08%2F06%2F2026

Source SHA-256: cacbb7d31ff91af2e1c747e19a917c130c58bd5ea3e1f65d473b3ca94d54d1bb

Case Number: 25STCV22772 Hearing Date: August 6, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: August

6, 2026

CASE NAME: Leticia

Maximo Mestas v. Volkswagen Group of America, Inc., et al.

CASE NO.: 25STCV22772

MOTION

FOR JUDGMENT ON THE PLEADINGS

MOVING PARTY: Defendants

Volkswagen Group of America, Inc. and Audi Pacific

RESPONDING PARTY(S): Plaintiff Leticia Meximo Mestas

REQUESTED RELIEF:

1. An

order granting judgment on the pleadings as to the fifth (negligent repair) and sixth (fraudulent concealment – inducement) causes of action.

TENTATIVE RULING:

1. Motion

for judgment on the pleadings is GRANTED without leave to amend.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On August 1, 2025, Plaintiff Leticia Maximo Mestas filed a Song-Beverly complaint against Defendants Volkswagen Group of America, Inc. (Volkswagen) and Audi Pacific (Audi) (sometimes collectively Defendants).

On October 3, 2025, Volkswagen filed an answer.

On May 22, 2026, Audi filed an answer.

On June 11, 2026, Defendants filed the instant motion for judgment on the pleadings. On July 27, 2026, Plaintiff filed an opposition. On July 29, 2026, Defendants filed a reply.

LEGAL STANDARD:

Judgment on the Pleadings

“

A defendant may move for judgment on the pleadings if (i) the court does not have jurisdiction of the subject of the cause of action alleged in the complaint, or (ii) the complaint does not state facts sufficient to constitute a cause of action alleged in the complaint. (Cal. Code Civ. Proc. (CCP) § 438(b)(2), and subd. (c).) “The standard of review for a motion for judgment on the pleadings is the same as that for a general demurrer: We treat the pleadings as admitting all of the material facts properly pleaded, but not any contentions, deductions or conclusions of fact or law contained therein. We may also consider matters subject to judicial notice.” (Dunn v. County of Santa Barbara (2006) 135 Cal. App. 4th 1281, 1298.)

“

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (CCP § 430.30(a); Blank v. Kirwan (1985) 39 Cal. 3d 311,

318.) A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) The only issue involved in a demurrer hearing is whether the complaint states a cause of action. (Ibid.)

A demurrer assumes the truth of all factual, material allegations properly pled in the challenged pleading. (Blank v. Kirwan, supra, 39 Cal. 3d at p. 318.) No matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (Del E. Webb Corp. v. Structural Materials Co. (1981) 123 Cal. App. 3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (Blank, supra, 39 Cal. 3d at p. 318.)

Meet and Confer

As with demurrers and motions to strike, and subject to enumerated exceptions, the parties are required to meet and confer prior to filing a motion for judgment on the pleadings. (CCP § 439, § 430.41, § 435.) Here, the parties met and conferred via telephone on June 2, 2026. (Declaration of Alex H. McKeon ¶ 5.) This requirement is therefore met.

ANALYSIS:

Fifth Cause of
Action – Negligent Repair

Defendants contend this claim is barred by the Economic Loss Rule. Plaintiff argues it is not. Defendants distinguish Plaintiff's authorities on reply and reiterate their arguments.

The economic loss rule provides that, "[i]n general, there is no recovery in tort for negligently inflicted 'purely economic losses,'

meaning financial harm unaccompanied by physical or property damage.” (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 922.)² However, there is a “recognized exception to the economic loss rule for consumers who contract for certain kinds of professional services.”³ (Id., at p. 933.)

² “In that context, ... a cause of action for negligence ensures that the consumer receives the services the professional agreed to provide.⁴ In such settings, professionals generally agree to provide ‘careful efforts’ in rendering contracted for services, but ‘most clients do not know enough to protect themselves by inspecting the professional’s work or by other independent means.’” (Ibid. [citations omitted].)⁵ “Given this disparity, a claim for professional negligence can serve the important purpose of ensuring that professionals render the ‘careful efforts’ they have contracted to provide.”⁶ (Ibid. [citations omitted].)⁷

In a negligent performance case, a “plaintiff will be entitled to recover economic loss damages without the need to allege and prove personal injury or property damage” based on a consideration of the following factors: “(1) the extent to which the transaction was intended to affect the plaintiff, (2) the foreseeability of harm to the plaintiff, (3) the degree of certainty that the plaintiff suffered injury, (4) the closeness of the connection between the defendant’s conduct and the injury suffered, (5) the moral blame attached to the defendant’s conduct, and (6) the policy of preventing future harm.”⁸ (North American Chemical Co. v. Superior Court (1997) 59 Cal.App.4th 764, 782, 786.)⁹ “[T]he foreseeability of the economic harm to the plaintiff from the defendant’s negligent conduct [is] the critical factor.”¹⁰ (Id. at 782.)

Here, Plaintiff insufficiently stated a claim for negligent repair. Notably, Plaintiff failed to allege damages because, in context, Plaintiff alleges the repairs were covered under a manufacturer’s warranty. (Compl. ¶¶ 7, 8, 11, 12, 47.) Plaintiffs did not address her damages in their opposition at all. Instead, Plaintiff provides a slew of argument.

Accordingly, the court GRANTS Defendants’ motion for judgment on the pleadings without leave to amend.

Sixth Cause of
Action – Fraudulent Inducement-Concealment

Defendants contend this claim fails to allege the elements with particularity, failed to allege what was concealed, no resulting damage, no duty to disclose, no corporate ratification, and is also barred by the Economic Loss Rule.

Plaintiff did not address this in their opposition. The court accepts this as a concession. (See *Moulton Niguel Water Dist. v. Colombo* (2003) 111 Cal.App.4th 1210, 1215[[C]ontentions are waived when a party fails to support them with reasoned argument and citations to authority."]) This also informs the court that Plaintiff cannot reasonably amend to cure this defect.

Accordingly, the court GRANTS FCA's motion for judgment on the pleadings without leave to amend.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion for judgment on the pleadings is GRANTED without leave to amend.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: August 6, 2026 _____ Upinder S. Kalra

Judge
of the Superior Court